Consider and Adopt Revisions to Board Policy FEC (Local)

Proposal:
That the Board of Trustees consider and adopt revisions to Local Board Policy FEC Attendance: Attendance for Credit

Explanation:
The Administration recommends consideration and adoption of the revisions to Board Policy FEC Attendance for Credit. The Administration recommends that the updated Local Board Policy FEC (Local) be adopted as presented.

Policy Reference: FEC Local

Recommended by:

Dr. David Vinson
Superintendent of Schools

Conroe ISD (conroe-isd)

Attendance: Attendance for Credit (FEC)

Policy Type: Local Policy

Date Issued: 2021-10-07

Version: 1

This policy shall apply to a student who has not been in attendance for 90 percent of the days the class is offered.

Absences Considered

Except as otherwise provided by law, all absences incurred while enrolled in the District shall be considered in determining whether a student has attended the required percentage of days under this policy.

Attendance Committees

The Board shall establish an attendance committee or as many committees as necessary for efficient implementation of Education Code 25.092.

The Superintendent shall make the specific appointments in accordance with legal requirements.

Parental Notice Of Excessive Absences

A student and the student's parent or guardian shall be given written notice prior to and at such time when a student's attendance in any class drops below 90 percent of the days the class is offered.

Methods For Regaining Credit Or Awarding A Final Grade

When a student's attendance drops below 90 percent but remains at least at 75 percent of the days the class is offered, the student may earn credit for the class or a final grade by completing a plan approved by the principal. This plan must provide for the student to meet the instructional requirements of the class as determined by the principal.

If the student fails to successfully complete the plan, or when a student's attendance drops below 75 percent of the days the class is offered, the student, parent, or representative may request award of credit or a final grade by submitting a written petition to the appropriate attendance committee.

Petitions for credit or a final grade may be filed at any time the student receives notice but, in any event, no later than 30 days after the last day of classes.

The attendance committee shall review the student's entire attendance record and the reasons for absences and shall determine whether to award credit or a final grade. The attendance committee may also, whether a petition is filed or not, review the records of all students whose attendance drops below 90 percent of the days the class is offered.

A student who has lost credit or has not received a final grade because of excessive absences may regain credit or be awarded a final grade by fulfilling the requirements established by the attendance committee.

Student Health Care and Personal Illness

In determining extenuating circumstances, ~~T~~the principal or attendance committee shall consider absence for appointments with health care professionals and absence resulting from a serious or life-threatening illness or related treatment as defined in Texas Education Code Section 25.087. The principal or attendance committee may require verification from a health-care professional ~~provider~~ in accordance with ~~administrative regulations~~ District procedure as a condition of classifying an absence for an appointment for health care or personal illness as one for which there are extenuating circumstances.

Best Interest Standard

In reaching consensus regarding a student's absences and how the student can be awarded credit or a final grade, the attendance committee shall attempt to ensure that its decision is in the best interest of the student. The Superintendent shall develop administrative regulations to document the attendance committee's decision.

Guidelines On Extenuating Circumstances

The attendance committee shall consider whether a student has mastered the essential knowledge and skills and maintained passing grades in the course or subject.

When makeup work is completed satisfactorily, the attendance committee shall consider extracurricular absences and other excused absences as days of attendance for award of credit or a final grade. [See FEA]

The attendance committee shall consider whether the reasons for the absences were out of the parent's or student's control and whether documentation for the absence is acceptable.

The student or parent shall be given an opportunity to present any information to the committee about the absences and to discuss ways to earn or regain credit or be awarded a final grade.

Imposing Conditions For Awarding Credit Or A Final Grade

The attendance committee shall consider the student's unique circumstances and, if necessary, shall impose conditions for awarding credit or a final grade that permit the student to meet the instructional requirements of the class rather than assigning a student to attend a specified program for an amount of time equivalent to the student's absences. Conditions may include:

1. Maintaining attendance standards for the rest of the semester.
2. Completing additional assignments, as specified by the committee or teacher.

3. Attending tutorial sessions as scheduled.
4. Completing other instructional programs, as specified by the committee.
5. Taking an examination to earn credit. [See EHDB]

In all cases, the student must earn a passing grade in order to receive credit.

The District shall adopt procedures to implement this policy.

Appeal Process

A parent or student may appeal the decision of the attendance committee in accordance with FNG(LOCAL).

DATE ISSUED: ~~2021-10-07~~

UPDATE: 1

FEC (Local Policy)

LOCAL POLICY: FEC

Amended Board Policy:

Student Health Care and Personal Illness

In determining extenuating circumstances, ~~T~~the principal or attendance committee shall consider absence for appointments with health care professionals and absence resulting from a serious or life-threatening illness or related treatment as defined in Texas Education Code Section 25.087. The principal or attendance committee may require verification from a health-care professional ~~provider~~ in accordance with ~~administrative regulations~~ District procedure as a condition of classifying an absence for an appointment for health care or personal illness as one for which there are extenuating circumstances.

The District shall adopt procedures to implement this policy.

Legislative Basis for the Policy Change

Origins of the Code Revisions: House Bill 367 and Senate Bill 207.

Education Code § 25.087. EXCUSED ABSENCES.
(a) A person required to attend school, including a person required to attend school under Section 25.085(e), may be excused for temporary absence resulting from any cause acceptable to the teacher, principal, or superintendent of the school in which the person is enrolled.
(b) A school district shall excuse a student from attending school for:
(1) the following purposes, including travel for those purposes:
(A) observing religious holy days;
(B) attending a required court appearance;
(C) appearing at a governmental office to complete paperwork required in connection with the student's application for United States citizenship;
(D) taking part in a United States naturalization oath ceremony;
(E) serving as an election clerk;
(F) if the student is in the conservatorship of the Department of Family and Protective Services, participating, as determined and documented by the department, in an activity:
(i) ordered by a court under Chapter 262 or 263, Family Code, provided that it is not practicable to schedule the participation outside of school hours; or
(ii) required under a service plan under Subchapter B, Chapter 263, Family Code; or
(G) attending a course under Section 25.0875;
(2) a temporary absence resulting from an appointment with health care professionals, including mental health professionals, for the student or the student's child if the student commences classes or returns to school on the same day of the appointment; or
(3) an absence resulting from a serious or life-threatening illness or related treatment that makes the student's attendance infeasible, if the student or the student's parent or guardian provides on a form adopted by the district under Subsection (g) a certification from a physician licensed to practice medicine in this state specifying the following information, as determined by the physician:
(A) the student's illness;
(B) a statement that the illness is serious or life-threatening;
(C) the anticipated period of the student's absence relating to the illness or related treatment; and
(D) a statement that the illness makes the student's attendance infeasible during the anticipated period of absence described by Paragraph (C).

	(b-1) A school district may adopt a policy excusing a student from attending school for service as a student early voting clerk in an election. (b-2) A school district may excuse a student from attending school to visit an institution of higher education accredited by a generally recognized accrediting organization during the student's junior and senior years of high school for the purpose of determining the student's interest in attending the institution of higher education, provided that: (1) the district may not excuse for this purpose more than two days during the student's junior year and two days during the student's senior year; and (2) the district adopts: (A) a policy to determine when an absence will be excused for this purpose; and (B) a procedure to verify the student's visit at the institution of higher education. (b-3) A temporary absence for purposes of Subsection (b)(2) includes the temporary absence of a student diagnosed with autism spectrum disorder on the day of the student's appointment with a health care practitioner, as described by Section 1355.015(b), Insurance Code, to receive a generally recognized service for persons with autism spectrum disorder, including applied behavioral analysis, speech therapy, and occupational therapy. (b-4) A school district shall excuse a student whose parent, stepparent, or legal guardian is an active duty member of the uniformed services as defined by Section 162.002 and has been called to duty for, is on leave from, or immediately returned from continuous deployment of at least four months outside the locality where the parent, stepparent, or guardian regularly resides, to visit with the student's parent, stepparent, or guardian. A school district may not excuse a student under this subsection more than five days in a school year. An excused absence under this subsection must be taken: (1) not earlier than the 60th day before the date of deployment; or (2) not later than the 30th day after the date of return from deployment. (b-5) A school district shall excuse a student who is 17 years of age or older from attending school to pursue enlistment in a branch of the armed services of the United States or the Texas National Guard, provided that: (1) the district may not excuse for this purpose more than four days of school during the period the student is enrolled in high school; and (2) the district verifies the student's activities related to pursuing enlistment in a branch of the armed services or the Texas National Guard. (b-6) Each school district shall adopt procedures to verify a student's activities as described by Subsection (b-5). (b-7) A school district may excuse a student who is 15 years of age or older from attending school to visit a driver's license office to obtain a driver's license or learner license, provided that: (1) the district may not excuse more than one day of school during the period the student is enrolled in high school for each of the following purposes:

	(A) obtaining a driver's license; or (B) obtaining a learner license; and (2) the district verifies the student's visit to the driver's license office in accordance with procedures adopted by the district. (b-8) A school district may excuse a student from attending school for a career investigation day to visit a professional at the professional's workplace during the student's junior and senior years of high school for the purpose of determining the student's interest in pursuing a career in the professional's field, provided that: (1) the district may not excuse for this purpose more than two days during the student's junior year and two days during the student's senior year; and (2) the district adopts: (A) a policy to determine when an absence may be excused for this purpose; and (B) a procedure to verify the student's visit at the professional's workplace. (c) A school district may excuse a student in grades 6 through 12 for the purpose of sounding "Taps" at a military honors funeral held in this state for a deceased veteran. (d) A student whose absence is excused under Subsection (b), (b-1), (b-2), (b-4), (b-5), (b-7), (b-8), or (c) may not be penalized for that absence and shall be counted as if the student attended school for purposes of calculating the average daily attendance of students in the school district. A student whose absence is excused under Subsection (b), (b-1), (b-2), (b-4), (b-5), (b-7), (b-8), or (c) shall be allowed a reasonable time to make up school work missed on those days. If the student satisfactorily completes the school work, the day of absence shall be counted as a day of compulsory attendance. (e) A school district may excuse a student for the purposes provided by Subsections (b)(1)(E) and (b-1) for a maximum of two days in a school year. (f) For purposes of excusing a student from attending school to observe a religious holy day under Subsection (b)(1)(A), a school district: (1) may not require documentation from a clergy member or other religious leader; and (2) shall accept a note from the student's parent or person standing in parental relation verifying the purpose of the student's absence. (g) For purposes of excusing a student with a serious or life-threatening illness from attending school under Subsection (b)(3), a school district: (1) shall adopt a form to provide the certification described by that subsection; and (2) may not require the student or the student's parent or guardian to provide more documentation or information than is required by the form adopted under Subdivision (1).